

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO H.B. 2327
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-483, Arizona Revised Statutes, is amended to
3 read:

4 11-483. Records maintained by county recorder;
5 confidentiality; applicability; definitions

6 A. Notwithstanding any other provision of this article, in any
7 county an eligible person may request that the general public be
8 prohibited from accessing ~~the unique identifier and the recording date~~
9 ~~THAT PERSON'S IDENTIFYING INFORMATION THAT IS~~ contained in ~~indexes of~~
10 recorded instruments ~~THAT ARE~~ maintained by the county recorder, ~~INCLUDING~~
11 ~~ANY DATA THAT MAY BE USED DIRECTLY OR INDIRECTLY TO IDENTIFY THAT PERSON,~~
12 and may request the county recorder to prohibit access to that person's
13 identifying information, ~~including THAT IS CONTAINED IN~~ any of the
14 following:

15 1. That person's documents, instruments or writings recorded by the
16 county recorder.

17 2. If the person is a public official, the address of a property
18 held in trust by the public official.

19 B. An eligible person may request this action by filing an
20 affidavit that states all of the following on an application form
21 developed by the administrative office of the courts in agreement with an
22 association of counties, an organization of peace officers and the motor
23 vehicle division of the department of transportation:

24 1. The person's full legal name and residential address.

25 2. The full legal description and parcel number of the person's
26 property.

27 3. Unless the person is the spouse of a peace officer or the spouse
28 or minor child of a deceased peace officer or the person is a former

1 public official or former judge, the position the person currently holds
2 and a description of the person's duties, except that an eligible person
3 who is protected under an order of protection or injunction against
4 harassment shall instead attach a copy of the order of protection or
5 injunction against harassment or an eligible person who is a participant
6 in the address confidentiality program shall instead attach a copy of the
7 participant's current and valid address confidentiality program
8 authorization card issued pursuant to section 41-163 and a statement of
9 certification provided by the secretary of state's office.

10 4. The reasons the person reasonably believes that the person's
11 life or safety or that of another person is in danger and that restricting
12 access pursuant to this section will serve to reduce the danger.

13 5. The document locator number and recording date of each
14 instrument for which the person requests access restriction pursuant to
15 this section.

16 6. A copy of pages from each instrument that includes the document
17 locator number and the person's identifying information, including the
18 person's full legal name and residential address or full legal name and
19 telephone number.

20 C. If an eligible person is also requesting pursuant to section
21 11-484 that the general public be prohibited from accessing records
22 maintained by the county assessor and county treasurer, the eligible
23 person may combine the request pursuant to subsection B of this section
24 with the request pursuant to section 11-484 by filing one affidavit. The
25 affidavit and subsequent action by the appropriate authorities shall meet
26 all of the requirements of this section and section 11-484.

27 D. The affidavit shall be filed with the presiding judge of the
28 superior court in the county in which the affiant resides. To prevent
29 multiple filings, an eligible person who is a peace officer, spouse of a
30 peace officer, spouse or minor child of a deceased peace officer, public
31 defender, prosecutor, code enforcement officer, corrections or detention
32 officer, corrections support staff member or law enforcement support staff
33 member shall deliver the affidavit to the peace officer's commanding
34 officer, or to the head of the prosecuting, public defender, code
35 enforcement, law enforcement, corrections or detention agency, as
36 applicable, or that person's designee, who shall file the affidavits at
37 one time. In the absence of an affidavit that contains a request for
38 immediate action and that is supported by facts justifying an earlier
39 presentation, the commanding officer, or the head of the prosecuting,
40 public defender, code enforcement, law enforcement, corrections or
41 detention agency, as applicable, or that person's designee, shall not file
42 affidavits more often than quarterly.

43 E. On receipt of an affidavit or affidavits, the presiding judge of
44 the superior court shall file with the clerk of the superior court a
45 petition on behalf of all requesting affiants. Each affidavit presented
46 shall be attached to the petition. In the absence of an affidavit that

1 contains a request for immediate action and that is supported by facts
2 justifying an earlier consideration, the presiding judge may accumulate
3 affidavits and file a petition at the end of each quarter.

4 F. The presiding judge of the superior court shall review the
5 petition and each attached affidavit to determine whether the action
6 requested by each affiant should be granted. If the presiding judge of
7 the superior court concludes that the action requested by the affiant will
8 reduce a danger to the life or safety of the affiant or another person,
9 the presiding judge of the superior court shall order that the county
10 recorder prohibit access for five years to the affiant's identifying
11 information, including any of that person's documents, instruments or
12 writings recorded by the county recorder and made available on the
13 internet. If the presiding judge of the superior court concludes that the
14 affiant or another person is in actual danger of physical harm from a
15 person or persons with whom the affiant has had official dealings and that
16 action pursuant to this section will reduce a danger to the life or safety
17 of the affiant or another person, the presiding judge of the superior
18 court shall order that the general public be prohibited for five years
19 from accessing ~~the unique identifier and the recording date~~ **THE PERSON'S**
20 **IDENTIFYING INFORMATION** contained in ~~indexes of~~ recorded instruments
21 maintained by the county recorder and identified pursuant to subsection B
22 of this section.

23 G. On motion to the court, if the presiding judge of the superior
24 court concludes that an instrument or writing recorded by the county
25 recorder has been redacted or sealed in error, that the original affiant
26 no longer lives at the address listed in the original affidavit, that the
27 cause for the original affidavit no longer exists or that temporary access
28 to the instrument or writing is needed, the presiding judge may
29 temporarily stay or permanently vacate all or part of the court order
30 prohibiting public access to the recorded instrument or writing.

31 H. On entry of the court order, the clerk of the superior court
32 shall file the court order and a copy of the affidavit required by
33 subsection B of this section with the county recorder. Not more than ten
34 days after the date on which the county recorder receives the court order,
35 the county recorder shall restrict access to the information as required
36 by subsection F of this section.

37 I. If the court denies an affiant's request pursuant to this
38 section, the affiant may request a court hearing. The hearing shall be
39 conducted by the court in the county where the petition was filed.

40 J. The county recorder shall remove the restrictions on all records
41 restricted pursuant to this section by January 5 in the year after the
42 court order expires. The county recorder shall send by mail one notice to
43 either the health professional, election officer, public official, former
44 public official, peace officer, spouse of a peace officer, spouse or minor
45 child of a deceased peace officer, public defender, prosecutor, code
46 enforcement officer, corrections or detention officer, corrections support

1 staff member, law enforcement support staff member, employee of the
2 department of child safety or employee of adult protective services who
3 has direct contact with families in the course of employment or the
4 employing agency of the peace officer, public defender, prosecutor, code
5 enforcement officer, corrections or detention officer, corrections support
6 staff member, law enforcement support staff member or employee of adult
7 protective services who was granted an order pursuant to this section of
8 the order's expiration date at least six months before the expiration
9 date. If the notice is sent to the employing agency, the employing agency
10 shall immediately notify the person who was granted the order of the
11 upcoming expiration date. The county recorder may coordinate with the
12 county assessor and county treasurer to prevent multiple notices from
13 being sent to the same person.

14 K. To include subsequent recordings in the court order, the
15 eligible person shall present to the county recorder at the time of
16 recordation a certified copy of the court order or shall provide to the
17 county recorder the recording number of the court order. The county
18 recorder shall ensure that public access is restricted pursuant to
19 subsection A of this section.

20 L. This section does not restrict access to public records for the
21 purposes of perfecting a lien pursuant to title 12, chapter 9, article 2.

22 M. This section does not prohibit access to the UNREDACTED records
23 of the county recorder by parties to the instrument, a law enforcement
24 officer performing the officer's official duties pursuant to subsection N
25 of this section, a title insurer, a title insurance agent or an escrow
26 agent licensed by the department of insurance and financial institutions.

27 N. A law enforcement officer is deemed to be performing the
28 officer's official duties if the officer provides a subpoena, court order
29 or search warrant for the records.

30 [O. THIS SECTION DOES NOT APPLY TO AN ELIGIBLE PERSON'S VOTER
31 REGISTRATION RECORD.]

32 [O.] [P.] For the purposes of this section:

33 1. "Code enforcement officer" means a person who is employed by a
34 state or local government and whose duties include performing field
35 inspections of buildings, structures or property to ensure compliance with
36 and enforce national, state and local laws, ordinances and codes.

37 2. "Commissioner" means a commissioner of the superior court or
38 municipal court.

39 3. "Corrections support staff member" means an adult or juvenile
40 corrections employee who has direct contact with inmates.

41 4. "Election officer" means a state, county or municipal employee
42 who holds an election officer's certificate issued pursuant to section
43 16-407.

1 5. "Eligible person" means a health professional, election officer,
2 public official, former public official, peace officer, spouse of a peace
3 officer, spouse or minor child of a deceased peace officer, justice,
4 judge, commissioner, hearing officer, public defender, prosecutor, code
5 enforcement officer, adult or juvenile corrections officer, corrections
6 support staff member, probation officer, member of the commission on
7 appellate court appointments, member of the board of executive clemency,
8 law enforcement support staff member, employee of the department of child
9 safety or employee of adult protective services who has direct contact
10 with families in the course of employment, national guard member who is
11 acting in support of a law enforcement agency, person who is protected
12 under an order of protection or injunction against harassment, person who
13 is a participant in the address confidentiality program pursuant to title
14 41, chapter 1, article 3 or firefighter who is assigned to the Arizona
15 counter terrorism information center in the department of public safety.

16 6. "Former public official" means a person who was duly elected or
17 appointed to Congress, the legislature or a statewide office, who ceased
18 serving in that capacity and who was the victim of a dangerous offense as
19 defined in section 13-105 while in office.

20 7. "Health professional" means an individual who is licensed
21 pursuant to title 32, chapter 13, 15, 17, 19.1, 25 or 33.

22 8. "Hearing officer" means a hearing officer who is appointed
23 pursuant to section 28-1553.

24 ~~9. "Indexes" means only those indexes that are maintained by and~~
25 ~~located in the office of the county recorder, that are accessed~~
26 ~~electronically and that contain information beginning from and after~~
27 ~~January 1, 1987.~~

28 9. "IDENTIFYING INFORMATION":

29 (a) MEANS ANY RECORDED DATA OR INFORMATION THAT ALONE OR IN
30 CONNECTION WITH OTHER RECORDS HAS THE CAPABILITY OF UNIQUELY IDENTIFYING,
31 TRACING OR AUTHENTICATING ANY OF THE FOLLOWING:

32 (i) A SPECIFIC INDIVIDUAL.

33 (ii) A SPECIFIC INDIVIDUAL'S OWNERSHIP INTEREST IN AN ENTITY.

34 (iii) A TRUST IN WHICH A SPECIFIC INDIVIDUAL IS A TRUSTEE, TRUSTOR
35 OR BENEFICIARY.

36 (b) INCLUDES:

37 (i) A FULL NAME, MAIDEN NAME OR ALIAS.

38 (ii) GOVERNMENT-ISSUED IDENTIFIERS.

39 (iii) BIOMETRIC IDENTIFIERS.

40 (iv) UNIQUE DIGITAL OR DEVICE IDENTIFIERS.

41 (v) SENSITIVE PERSONAL DATA.

42 (vi) ANY OTHER INFORMATION THAT REASONABLY ENABLES IDENTIFICATION
43 THROUGH ANALYSIS, CORRECTION OR LINKABILITY.

44 (c) DOES NOT INCLUDE:

45 (i) A PARCEL NUMBER.

1 (ii) THE LEGAL DESCRIPTION OF A PROPERTY.

2 (iii) A PROPERTY ADDRESS.

3 (iv) ANY OTHER PROPERTY IDENTIFIER.

4 10. "Judge" means a judge or former judge of the United States
5 district court, the United States court of appeals, the United States
6 magistrate court, the United States bankruptcy court, the United States
7 immigration court, the Arizona court of appeals, the superior court or a
8 municipal court.

9 11. "Justice" means a justice of the United States or Arizona
10 supreme court or a justice of the peace.

11 12. "Law enforcement support staff member" means a person who
12 serves in the role of an investigator or prosecutorial assistant in an
13 agency that investigates or prosecutes crimes, who is integral to the
14 investigation or prosecution of crimes and whose name or identity will be
15 revealed in the course of public proceedings.

16 13. "Peace officer":

17 (a) Means any person vested by law, or formerly vested by law, with
18 a duty to maintain public order and make arrests.

19 (b) Includes a federal law enforcement officer or agent who resides
20 in this state and who has the power to make arrests pursuant to federal
21 law.

22 14. "Prosecutor" means a current or former county attorney,
23 municipal prosecutor, attorney general or United States attorney and
24 includes a current or former assistant or deputy United States attorney,
25 county attorney, municipal prosecutor or attorney general.

26 15. "Public defender" means a federal public defender, county
27 public defender, county legal defender or county contract indigent defense
28 counsel and includes an assistant or deputy federal public defender,
29 county public defender or county legal defender.

30 16. "Public official" means a person who is duly elected or
31 appointed to Congress, the legislature, a statewide office or a county,
32 city or town office.

33 Sec. 2. Section 11-484, Arizona Revised Statutes, is amended to
34 read:

35 11-484. Records maintained by county assessor and county
36 treasurer; redaction; applicability; definitions

37 A. Notwithstanding any other provision of this article, in any
38 county an eligible person may request that the general public be
39 prohibited from accessing that person's identifying information, including
40 ANY DATA THAT MAY BE USED TO DIRECTLY OR INDIRECTLY IDENTIFY THAT PERSON,
41 THAT IS INCLUDED IN any of the following:

42 1. That person's documents, instruments, writings and information
43 maintained by the county assessor and the county treasurer.

44 2. If the person is a public official, the address of a property
45 held in trust by the public official.

1 B. An eligible person may request this action by filing an
2 affidavit that states all of the following on an application form
3 developed by the administrative office of the courts in agreement with an
4 association of counties, an organization of peace officers and the motor
5 vehicle division of the department of transportation:

6 1. The person's full legal name and residential address.

7 2. The full legal description and parcel number of the person's
8 property.

9 3. Unless the person is the spouse of a peace officer or the spouse
10 or minor child of a deceased peace officer or the person is a former
11 public official or former judge, the position the person currently holds
12 and a description of the person's duties, except that an eligible person
13 who is protected under an order of protection or injunction against
14 harassment shall attach a copy of the order of protection or injunction
15 against harassment or an eligible person who is a participant in the
16 address confidentiality program shall instead attach a copy of the
17 participant's current and valid address confidentiality program
18 authorization card issued pursuant to section 41-163 and a statement of
19 certification provided by the secretary of state's office.

20 4. The reasons the person reasonably believes that the person's
21 life or safety or that of another person is in danger and that redacting
22 the person's identifying information, including the residential address
23 and telephone number, will serve to reduce the danger.

24 C. If an eligible person is also requesting pursuant to section
25 11-483 that the general public be prohibited from accessing records
26 maintained by the county recorder, the eligible person may combine the
27 request pursuant to subsection B of this section with the request pursuant
28 to section 11-483 by filing one affidavit. The affidavit and subsequent
29 action by the appropriate authorities shall meet all of the requirements
30 of this section and section 11-483.

31 D. The affidavit shall be filed with the presiding judge of the
32 superior court in the county in which the affiant resides. To prevent
33 multiple filings, an eligible person who is a peace officer, spouse of a
34 peace officer, spouse or minor child of a deceased peace officer, public
35 defender, prosecutor, code enforcement officer, corrections or detention
36 officer, corrections support staff member or law enforcement support staff
37 member shall deliver the affidavit to the peace officer's commanding
38 officer, or to the head of the prosecuting, public defender, code
39 enforcement, law enforcement, corrections or detention agency, as
40 applicable, or that person's designee, who shall file the affidavits at
41 one time. In the absence of an affidavit that contains a request for
42 immediate action and that is supported by facts justifying an earlier
43 presentation, the commanding officer, or the head of the prosecuting,
44 public defender, code enforcement, law enforcement, corrections or
45 detention agency, as applicable, or that person's designee, shall not file
46 affidavits more often than quarterly.

1 E. On receipt of an affidavit or affidavits, the presiding judge of
2 the superior court shall file with the clerk of the superior court a
3 petition on behalf of all requesting affiants. Each affidavit presented
4 shall be attached to the petition. In the absence of an affidavit that
5 contains a request for immediate action and that is supported by facts
6 justifying an earlier consideration, the presiding judge may accumulate
7 affidavits and file a petition at the end of each quarter.

8 F. The presiding judge of the superior court shall review the
9 petition and each attached affidavit to determine whether the action
10 requested by each affiant should be granted. If the presiding judge of
11 the superior court concludes that the action requested by the affiant will
12 reduce a danger to the life or safety of the affiant or another person,
13 the presiding judge of the superior court shall order the redaction of the
14 affiant's identifying information, including any of that person's
15 documents, instruments, writings and information maintained by the county
16 assessor and the county treasurer. The redaction shall be in effect for
17 five years.

18 G. On motion to the court, if the presiding judge of the superior
19 court concludes that an instrument or writing maintained by the county
20 assessor or the county treasurer has been redacted or sealed in error,
21 that the original affiant no longer lives at the address listed in the
22 original affidavit, that the cause for the original affidavit no longer
23 exists or that temporary access to the instrument or writing is needed,
24 the presiding judge may temporarily stay or permanently vacate all or part
25 of the court order prohibiting public access to the instrument or writing.

26 H. On entry of the court order, the clerk of the superior court
27 shall file the court order and a copy of the affidavit required by
28 subsection B of this section with the county assessor and the county
29 treasurer. Not more than ten days after the date on which the county
30 assessor and the county treasurer receive the court order, the county
31 assessor and the county treasurer shall restrict access to the information
32 as required by subsection F of this section.

33 I. If the court denies an affiant's request pursuant to this
34 section, the affiant may request a court hearing. The hearing shall be
35 conducted by the court in the county where the petition was filed.

36 J. The county assessor and the county treasurer shall remove the
37 restrictions on all records that are redacted pursuant to this section by
38 January 5 in the year after the court order expires. The county assessor
39 or the county treasurer shall send by mail one notice to either the
40 health professional, election officer, public official, former public
41 official, peace officer, spouse of a peace officer, spouse or minor child
42 of a deceased peace officer, public defender, prosecutor, code enforcement
43 officer, corrections or detention officer, corrections support staff
44 member, law enforcement support staff member, employee of the department
45 of child safety or employee of adult protective services who has direct
46 contact with families in the course of employment or the employing agency

1 of the peace officer, public defender, prosecutor, code enforcement
2 officer, corrections or detention officer, corrections support staff
3 member, law enforcement support staff member or employee of adult
4 protective services who was granted an order pursuant to this section of
5 the order's expiration date at least six months before the expiration
6 date. If the notice is sent to the employing agency, the employing agency
7 shall immediately notify the person who was granted the order of the
8 upcoming expiration date. The county assessor or county treasurer may
9 coordinate with the county recorder to prevent multiple notices from being
10 sent to the same person.

11 [K. THIS SECTION DOES NOT APPLY TO AN ELIGIBLE PERSON'S VOTER
12 REGISTRATION RECORD.]

13 [K.] [L.] For the purposes of this section:

14 1. "Code enforcement officer" means a person who is employed by a
15 state or local government and whose duties include performing field
16 inspections of buildings, structures or property to ensure compliance with
17 and enforce national, state and local laws, ordinances and codes.

18 2. "Commissioner" means a commissioner of the superior court or
19 municipal court.

20 3. "Corrections support staff member" means an adult or juvenile
21 corrections employee who has direct contact with inmates.

22 4. "Election officer" means a state, county or municipal employee
23 who holds an election officer's certificate issued pursuant to section
24 16-407.

25 5. "Eligible person" means a health professional, election officer,
26 public official, former public official, peace officer, spouse of a peace
27 officer, spouse or minor child of a deceased peace officer, justice,
28 judge, commissioner, hearing officer, public defender, prosecutor, code
29 enforcement officer, adult or juvenile corrections officer, corrections
30 support staff member, probation officer, member of the commission on
31 appellate court appointments, member of the board of executive clemency,
32 law enforcement support staff member, employee of the department of child
33 safety or employee of adult protective services who has direct contact
34 with families in the course of employment, national guard member who is
35 acting in support of a law enforcement agency, person who is protected
36 under an order of protection or injunction against harassment, person who
37 is a participant in the address confidentiality program pursuant to title
38 41, chapter 1, article 3, or firefighter who is assigned to the Arizona
39 counter terrorism information center in the department of public safety.

40 6. "Former public official" means a person who was duly elected or
41 appointed to Congress, the legislature or a statewide office, who ceased
42 serving in that capacity and who was the victim of a dangerous offense as
43 defined in section 13-105 while in office.

44 7. "Health professional" means an individual who is licensed
45 pursuant to title 32, chapter 13, 15, 17, 19.1, 25 or 33.

1 8. "Hearing officer" means a hearing officer who is appointed
2 pursuant to section 28-1553.

3 9. "IDENTIFYING INFORMATION":

4 (a) MEANS ANY RECORDED DATA OR INFORMATION THAT ALONE OR IN
5 CONNECTION WITH OTHER RECORDS HAS THE CAPABILITY OF UNIQUELY IDENTIFYING,
6 TRACING OR AUTHENTICATING ANY OF THE FOLLOWING:

7 (i) A SPECIFIC INDIVIDUAL.

8 (ii) A SPECIFIC INDIVIDUAL'S OWNERSHIP INTEREST IN AN ENTITY.

9 (iii) A TRUST IN WHICH A SPECIFIC INDIVIDUAL IS A TRUSTEE, TRUSTOR
10 OR BENEFICIARY.

11 (b) INCLUDES:

12 (i) A FULL NAME, MAIDEN NAME OR ALIAS.

13 (ii) GOVERNMENT-ISSUED IDENTIFIERS.

14 (iii) BIOMETRIC IDENTIFIERS.

15 (iv) UNIQUE DIGITAL OR DEVICE IDENTIFIERS.

16 (v) SENSITIVE PERSONAL DATA.

17 (vi) ANY OTHER INFORMATION THAT REASONABLY ENABLES IDENTIFICATION
18 THROUGH ANALYSIS, CORRECTION OR LINKABILITY.

19 (c) DOES NOT INCLUDE:

20 (i) A PARCEL NUMBER.

21 (ii) THE LEGAL DESCRIPTION OF A PROPERTY.

22 (iii) A PROPERTY ADDRESS.

23 (iv) ANY OTHER PROPERTY IDENTIFIER.

24 ~~9-~~ 10. "Judge" means a judge or former judge of the United States
25 district court, the United States court of appeals, the United States
26 magistrate court, the United States bankruptcy court, the United States
27 immigration court, the Arizona court of appeals, the superior court or a
28 municipal court.

29 ~~10-~~ 11. "Justice" means a justice of the United States or Arizona
30 supreme court or a justice of the peace.

31 ~~11-~~ 12. "Law enforcement support staff member" means a person who
32 serves in the role of an investigator or prosecutorial assistant in an
33 agency that investigates or prosecutes crimes, who is integral to the
34 investigation or prosecution of crimes and whose name or identity will be
35 revealed in the course of public proceedings.

36 ~~12-~~ 13. "Peace officer":

37 (a) Means any person vested by law, or formerly vested by law, with
38 a duty to maintain public order and make arrests.

39 (b) Includes a federal law enforcement officer or agent who resides
40 in this state and who has the power to make arrests pursuant to federal
41 law.

42 ~~13-~~ 14. "Prosecutor" means a current or former county attorney,
43 municipal prosecutor, attorney general or United States attorney and
44 includes a current or former assistant or deputy United States attorney,
45 county attorney, municipal prosecutor or attorney general.

1 ~~14.~~ 15. "Public defender" means a federal public defender, county
2 public defender, county legal defender or county contract indigent defense
3 counsel and includes an assistant or deputy federal public defender,
4 county public defender or county legal defender.

5 ~~15.~~ 16. "Public official" means a person who is duly elected or
6 appointed to Congress, the legislature, a statewide office or a county,
7 city or town office.

8 Enroll and engross to conform

9 Amend title to conform

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